

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201603122	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Friday, 04/08/2016 3:39 AM	Location of Incident: 96th Street subway station (Uptown 1/2/3 lines)	18 Mo. SOL 10/8/2017	Precinct: 24
Date/Time CV Reported Tue, 04/12/2016 12:12 PM	CV Reported At: Mayor's Office	How CV Reported: Mail	Date/Time Received at CCRB Tue, 04/12/2016 12:12 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Amy Schenk	18232	959208	TB DT03
2. POM Linhong Li	31771	952993	TB DT03

Officer(s)	Allegation	Investigator Recommendation
A . POM Linhong Li	Off. Language: Police Officer Linhong Li made remarks to § 87(2)(b) based upon his perceived sexual orientation.	A . Unsubstantiated
B . POM Linhong Li	Discourtesy: Police Officer Linhong Li spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POF Amy Schenk	Off. Language: Police Officer Amy Schenk made remarks to § 87(2)(b) based upon his perceived sexual orientation.	C . Unsubstantiated

Case Summary

On April 12, 2016, § 87(2)(b) filed this complaint with the CCRB via mail.

On April 8, 2016, at approximately 3:39 a.m., § 87(2)(b) arrived at the 96th Street 1/2/3 uptown subway platform. Upon exiting the subway car, § 87(2)(b) saw Police Officer Linhong Li and Police Officer Amy Schenk standing near a pillar. § 87(2)(b) approached the officers to address an issue that he observed in the subway car.

Upon approaching the officers, § 87(2)(b) told PO Li that there were individuals in the subway car who had their bags on the seats. PO Li responded that it was not his job to tell civilians to take their bags off of seats, but he would tell them to take their feet off of the seats. § 87(2)(b) told PO Li that civilians can in fact receive summonses for having bags on the seats, to which PO Li responded by nodding his head. As § 87(2)(b) began to walk away, PO Li allegedly said, “Gay asshole, tell me how to do my job” (**Allegation A and Allegation B**).

§ 87(2)(b) then walked to the main mezzanine to look for the officers’ supervisor near the MTA booth. § 87(2)(b) did not find a supervisor, so he went back down to the platform and walked to the opposite end of the platform to see if a supervisor was positioned there. As he walked across the platform he passed the officers, and he believed he heard PO Li whisper, “Stop again.”

After determining that there was not a supervisor on the opposite side of the platform, § 87(2)(b) decided he would leave the station. As he was passing the officers for the third time, § 87(2)(b) allegedly heard PO Schenk say “faggot” (**Allegation C**).

§ 87(2)(b) did not stop or engage the officers. He left the subway platform via the stairs and then he proceeded to leave the station.

The investigation obtained video footage of the incident date from the 96th Street subway station; however, the footage provided to the CCRB by the MTA does not show the incident under investigation (Board Review 08).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of November 1, 2016, § 87(2)(b) has not filed a Notice of Claim in regards to this incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is the first complaint § 87(2)(b) has filed with the CCRB (Board Review 03).
- This is the first CCRB complaint filed against PO Schenk (see officer history).
- This is the second CCRB complaint filed against PO Li, who has a total two allegation in his four year tenure as an NYPD officer (see officer history). Of those allegations neither were substantiated; however, a Discourtesy – Word allegation went uninvestigated due to an uncooperative complainant.

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Schenk did not recall the incident under investigation; however, her memo book entries (Board Review 04) immediately prior to and after the alleged incident time place

her on the 96th Street 1/2/3 uptown platform with PO Li, who confirmed she was with him. § 87(2)(g).

Allegation A –Offensive Language: Police Officer Linhong Li made remarks to § 87(2)(b) based upon his perceived sexual orientation.

Allegation B – Discourtesy: Police Officer Linhong Li spoke discourteously to § 87(2)(b)

It is undisputed that after exiting a subway cart at the incident location, § 87(2)(b) approached PO Li and initiated a discussion requesting that PO Li summons passengers on the subway cart that had their bag(s) on a seat.

During § 87(2)(b)'s CCRB interview, he stated that after telling PO Li that many passengers had their bag(s) on a seat and that the offense is a \$50.00 fine, PO Li nodded his head (Board Review 05). When § 87(2)(b) began to walk away, he “thought” that he heard PO Li said, “Gay asshole, tell me how to do my job.”

In § 87(2)(b)'s initial complaint filed with the CCRB, he did not allege this (Board Review 09). In the phone statement he provided to the CCRB, § 87(2)(b) alleged that PO Li said, “Telling me how to do my job, asshole” (Board Review 10).

PO Li stated that his interaction with § 87(2)(b) did not extend past § 87(2)(b) telling him that he needed to issue summonses for commuters having their bags on seats, and PO Li responding that he would not do so (Board Review 06). PO Li did not make any statements to § 87(2)(b) after he told him so the second time. PO Li denied saying, “Gay asshole, tell me how to do my job.” PO Li denied using profanity at any point.

PO Schenk did not recall the incident (Board Review 07).

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be *unsubstantiated*.

Allegation C –Offensive Language: Police Officer Amy Schenk made remarks to § 87(2)(b) based upon his perceived sexual orientation.

§ 87(2)(b) stated that after he was unable to find the officers’ supervisor on the platform, he proceeded to leave the station. When passing the officers for the third and final time, PO Schenk called him a “faggot.”

During the telephone statement he provided to the CCRB, § 87(2)(b) said that he believed he heard PO Schenk say “faggot,” and that he was not entirely sure. § 87(2)(b) was asked about his uncertainty during his CCRB interview, but he stated that he was sure that PO Schenk said “faggot.”

PO Schenk did not recall interacting with § 87(2)(b) during her tour on April 8, 2016. She denied calling a civilian a “faggot” that night.

PO Li did not hear PO Schenk call § 87(2)(b) a “faggot” during their tour together on the incident date.

§ 87(2)(g)

Squad: 12

Investigator: _____

Signature

Print

Date

Squad Leader: _____
Title/Signature Print Date